



APPROVED BY THE TEXAS REAL ESTATE COMMISSION (TREC)

**SELLER'S DISCLOSURE NOTICE**

CONCERNING THE PROPERTY AT form1[0].#subform[0].TextField1[0]
(Street Address and City)

THIS NOTICE IS A DISCLOSURE OF SELLER'S KNOWLEDGE OF THE CONDITION OF THE PROPERTY AS OF THE DATE SIGNED BY SELLER AND IS NOT A SUBSTITUTE FOR ANY INSPECTIONS OR WARRANTIES THE PURCHASER MAY WISH TO OBTAIN. IT IS NOT A WARRANTY OF ANY KIND BY SELLER OR SELLER'S AGENTS.

Seller ☐ is ☐ is not occupying the Property. If unoccupied, how long since Seller has occupied the Property? subform[0].Te
1. The Property has the items checked below [Write Yes (Y), No (N), or Unknown (U)]:

☐ Range	☐ Oven	☐ Microwave
☐ Dishwasher	☐ Trash Compactor	☐ Disposal
☐ Washer/Dryer Hookups	☐ Window Screens	☐ Rain Gutters
☐ Security System	☐ Fire Detection Equipment	☐ Intercom System
	☐ Smoke Detector	
	☐ Smoke Detector-Hearing Impaired	
	☐ Carbon Monoxide Alarm	
	☐ Emergency Escape Ladder(s)	
☐ TV Antenna	☐ Cable TV Wiring	☐ Satellite Dish
☐ Ceiling Fan(s)	☐ Attic Fan(s)	☐ Exhaust Fan(s)
☐ Central A/C	☐ Central Heating	☐ Wall/Window Air Conditioning
☐ Plumbing System	☐ Septic System	☐ Public Sewer System
☐ Patio/Decking	☐ Outdoor Grill	☐ Fences
☐ Pool	☐ Sauna	☐ Spa ☐ Hot Tub
☐ Pool Equipment	☐ Pool Heater	☐ Automatic Lawn Sprinkler System
☐ Fireplace(s) & Chimney (Wood burning)		☐ Fireplace(s) & Chimney (Mock)
☐ Natural Gas Lines		☐ Gas Fixtures
☐ Liquid Propane Gas: ☐ LP Community (Captive) ☐ LP on Property		
☐ Fuel Gas Piping: ☐ Black Iron Pipe ☐ Corrugated Stainless Steel Tubing ☐ Copper		
Garage: ☐ Attached ☐ Not Attached ☐ Carport		
Garage Door Opener(s): ☐ Electronic ☐ Control(s)		
Water Heater: ☐ Gas ☐ Electric		
Water Supply: ☐ City ☐ Well ☐ MUD ☐ Co-op		

Roof Type: form1[0].#subform[0].TextField4[0] Age: 11[0].#subform[0].TextField (approx.)

Are you (Seller) aware of any of the above items that are not in working condition, that have known defects, or that are in need of repair? ☐ Yes ☐ No ☐ Unknown. If yes, then describe. (Attach additional sheets if necessary): form1[0].#subf

form1[0].#subform[0].TextField5[1]

form1[0].#subform[0].TextField5[2]

form1[0].#subform[0].TextField5[3]

2. Does the property have working smoke detectors installed in accordance with the smoke detector requirements of Chapter 766, Health and Safety Code?* ☐ Yes ☐ No ☐ Unknown. If the answer to this question is no or unknown, explain (Attach additional sheets if necessary): form1[0].#subform[1].TextField5[4]

form1[0].#subform[1].TextField5[5]

form1[0].#subform[1].TextField5[6]

form1[0].#subform[1].TextField5[7]

- * Chapter 766 of the Health and Safety Code requires one-family or two-family dwellings to have working smoke detectors installed in accordance with the requirements of the building code in effect in the area in which the dwelling is located, including performance, location, and power source requirements. If you do not know the building code requirements in effect in your area, you may check unknown above or contact your local building official for more information. A buyer may require a seller to install smoke detectors for the hearing impaired if: (1) the buyer or a member of the buyer's family who will reside in the dwelling is hearing impaired; (2) the buyer gives the seller written evidence of the hearing impairment from a licensed physician; and (3) within 10 days after the effective date, the buyer makes a written request for the seller to install smoke detectors for the hearing impaired and specifies the locations for the installation. The parties may agree who will bear the cost of installing the smoke detectors and which brand of smoke detectors to install.

3. Are you (Seller) aware of any known defects/malfunctions in any of the following? Write Yes (Y) if you are aware, write No (N) if you are not aware.

<u> </u> Interior Walls	<u> </u> Ceilings	<u> </u> Floors
<u> </u> Exterior Walls	<u> </u> Doors	<u> </u> Windows
<u> </u> Roof	<u> </u> Foundation/Slab(s)	<u> </u> Sidewalks
<u> </u> Walls/Fences	<u> </u> Driveways	<u> </u> Intercom System
<u> </u> Plumbing/Sewers/Septics	<u> </u> Electrical Systems	<u> </u> Lighting Fixtures

orm[1]Other Structural Components (Describe): form1[0].#subform[1].TextField5[8]

form1[0].#subform[1].TextField5[9]

form1[0].#subform[1].TextField5[10]

If the answer to any of the above is yes, explain. (Attach additional sheets if necessary): form1[0].#subform[1].TextField5[11]

form1[0].#subform[1].TextField5[12]

form1[0].#subform[1].TextField5[13]

4. Are you (Seller) aware of any of the following conditions? Write Yes (Y) if you are aware, write No (N) if you are not aware.

<u> </u> Active Termites (includes wood destroying insects)	<u> </u> Previous Structural or Roof Repair
<u> </u> Termite or Wood Rot Damage Needing Repair	<u> </u> Hazardous or Toxic Waste
<u> </u> Previous Termite Damage	<u> </u> Asbestos Components
<u> </u> Previous Termite Treatment	<u> </u> Urea-formaldehyde Insulation
<u> </u> Improper Drainage	<u> </u> Radon Gas
<u> </u> Water Damage Not Due to a Flood Event	<u> </u> Lead Based Paint
<u> </u> Landfill, Settling, Soil Movement, Fault Lines	<u> </u> Aluminum Wiring
<u> </u> Single Blockable Main Drain in Pool/Hot Tub/Spa*	<u> </u> Previous Fires
	<u> </u> Unplatted Easements
	<u> </u> Subsurface Structure or Pits
	<u> </u> Previous Use of Premises for Manufacture of
	<u> </u> Methamphetamine

If the answer to any of the above is yes, explain. (Attach additional sheets if necessary): form1[0].#subform[1].TextField5[14]

form1[0].#subform[1].TextField5[15]

form1[0].#subform[1].TextField5[16]

* A single blockable main drain may cause a suction entrapment hazard for an individual.

Seller's Disclosure Notice Concerning the Property at form1[0].#subform[2].TextField1[2] Page 3
(Street Address and City)

5. Are you (Seller) aware of any item, equipment, or system in or on the Property that is in need of repair? ☐ Yes (if you are aware) ☐ No (if you are not aware). If yes, explain (attach additional sheets if necessary): form1[0].#subform[2].TextField5[17]
form1[0].#subform[2].TextField5[18]
form1[0].#subform[2].TextField5[19]

6. Are you (Seller) aware of any of the following conditions?* Write Yes (Y) if you are aware, write No (N) if you are not aware.
 Present flood insurance coverage
 Previous flooding due to a failure or breach of a reservoir or a controlled or emergency release of water from a reservoir
 Previous water penetration into a structure on the property due to a natural flood event

Write Yes (Y) if you are aware, and check wholly or partly as applicable, write No (N) if you are not aware.

- Located ☐ wholly ☐ partly in a 100-year floodplain (Special Flood Hazard Area-Zone A, V, A99, AE, AO, AH, VE, or AR)
 Located ☐ wholly ☐ partly in a 500-year floodplain (Moderate Flood Hazard Area-Zone X (shaded))
 Located ☐ wholly ☐ partly in a floodway
 Located ☐ wholly ☐ partly in a flood pool
 Located ☐ wholly ☐ partly in a reservoir

If the answer to any of the above is yes, explain (attach additional sheets if necessary): form1[0].#subform[2].TextField5[20]
form1[0].#subform[2].TextField5[21]

*For purposes of this notice:

"100-year floodplain" means any area of land that:

- (A) is identified on the flood insurance rate map as a special flood hazard area, which is designated as Zone A, V, A99, AE, AO, AH, VE, or AR on the map;
(B) has a one percent annual chance of flooding, which is considered to be a high risk of flooding; and
(C) may include a regulatory floodway, flood pool, or reservoir.

"500-year floodplain" means any area of land that:

- (A) is identified on the flood insurance rate map as a moderate flood hazard area, which is designated on the map as Zone X (shaded); and
(B) has a two-tenths of one percent annual chance of flooding, which is considered to be a moderate risk of flooding.

"Flood pool" means the area adjacent to a reservoir that lies above the normal maximum operating level of the reservoir and that is subject to controlled inundation under the management of the United States Army Corps of Engineers.

"Flood insurance rate map" means the most recent flood hazard map published by the Federal Emergency Management Agency under the National Flood Insurance Act of 1968 (42 U.S.C. Section 4001 et seq.).

"Floodway" means an area that is identified on the flood insurance rate map as a regulatory floodway, which includes the channel of a river or other watercourse and the adjacent land areas that must be reserved for the discharge of a base flood, also referred to as a 100-year flood, without cumulatively increasing the water surface elevation of more than a designated height.

"Reservoir" means a water impoundment project operated by the United States Army Corps of Engineers that is intended to retain water or delay the runoff of water in a designated surface area of land.

7. Have you (Seller) ever filed a claim for flood damage to the property with any insurance provider, including the National Flood Insurance Program (NFIP)?* ☐ Yes ☐ No. If yes, explain (attach additional sheets as necessary): form1[0].#subform[2].TextField5[23]

*Homes in high risk flood zones with mortgages from federally regulated or insured lenders are required to have flood insurance. Even when not required, the Federal Emergency Management Agency (FEMA) encourages homeowners in high risk, moderate risk, and low risk flood zones to purchase flood insurance that covers the structure(s) and the personal property within the structure(s).

8. Have you (Seller) ever received assistance from FEMA or the U.S. Small Business Administration (SBA) for flood damage to the property? ☐ Yes ☐ No. If yes, explain (attach additional sheets as necessary): form1[0].#subform[2].TextField5[24]
form1[0].#subform[2].TextField5[25]

9. Are you (Seller) aware of any of the following? Write Yes (Y) if you are aware, write No (N) if you are not aware.

Room additions, structural modifications, or other alterations or repairs made without necessary permits or not in compliance with building codes in effect at that time.

Homeowners' Association or maintenance fees or assessments.

Any "common area" (facilities such as pools, tennis courts, walkways, or other areas) co-owned in undivided interest with others.

Any notices of violations of deed restrictions or governmental ordinances affecting the condition or use of the Property.

Any lawsuits directly or indirectly affecting the Property.

Any condition on the Property which materially affects the physical health or safety of an individual.

Any rainwater harvesting system located on the property that is larger than 500 gallons and that uses a public water supply as an auxiliary water source.

Any portion of the property that is located in a groundwater conservation district or a subsidence district.

Any conservation easements located on the Property.

"Conservation easement" means an easement (permanent or for a period of years) on the property that restricts the use of all or a part of the property to protect natural resources, wildlife habitat, open space, or historical sites.

The Property is presently covered by insurance.

The Property is presently covered by windstorm insurance.

Seller has been unable to insure the Property for any reason.

A private road on or adjoining the Property for which Seller is financially responsible for maintaining.

Any aboveground or underground storage tanks on the Property. (If yes, see 30 Texas Administrative Code Chapter 334 for additional disclosure requirements.)

Any aboveground storage tanks on the Property that hold 500 gallons or more and have stored petroleum products or other chemicals.

If the answer to any of the above is yes, explain. (Attach additional sheets if necessary): form1[0].#subform[4].TextField5[26]
form1[0].#subform[4].TextField5[27]

form1[0].#subform[4].TextField5[28]

10. If the property is located in a coastal area that is seaward of the Gulf Intracoastal Waterway or within 1,000 feet of the mean high tide bordering the Gulf of Mexico, the property may be subject to the Open Beaches Act or the Dune Protection Act (Chapter 61 or 63, Natural Resources Code, respectively) and a beachfront construction certificate or dune protection permit maybe required for repairs or improvements. Contact the local government with ordinance authority over construction adjacent to public beaches for more information.

11. This property may be located near a military installation and may be affected by high noise or air installation compatible use zones or other operations. Information relating to high noise and compatible use zones is available in the most recent Air Installation Compatible Use Zone Study or Joint Land Use Study prepared for a military installation and may be accessed on the Internet website of the military installation and of the county and any municipality in which the military installation is located.

form1[0].#su

form1[0].#su

Signature of Seller

Date

Signature of Seller

Date

The undersigned purchaser hereby acknowledges receipt of the foregoing notice.

form1[0].#su

form1[0].#su

Signature of Purchaser

Date

Signature of Purchaser

Date



This form was prepared by the Texas Real Estate Commission in accordance with Texas Property Code § 5.008(b) and is to be used in conjunction with a contract for the sale of real property entered into on or after September 1, 2023. Texas Real Estate Commission, P.O. Box 12188, Austin, TX 78711-2188, 512-936-3000 (<http://www.trec.texas.gov>) TREC NO. 55-1. This form replaces 55-0.